



Small Claims Dismissal or Judgment

Court Name _____ Case Number _____
Court Phone _____ Judge _____
Court Address _____

FORM USE: This form is used to record the outcome of a small claims case. It is completed by the parties or the court. For information about collecting a judgment, see *Collecting a Small Claims Judgment* (Form DC 85info).

A Case Contact Information

Plaintiff Name, Address, Phone

Defendant Name, Address, Phone

B Case Outcome

1. The court has: (select one)

- ☐ **dismissed** this case **without** prejudice. The case is closed, but the claim may be refiled.
- ☐ **dismissed** this case **with** prejudice. The case is closed, and the claim cannot be refiled in any court.
- ☐ **entered a judgment.** Continue to next section.
- ☐ **other:** _____

C Judgment

2. This judgment is entered: (select one)

- ☐ **after a hearing.**
- ☐ **by default** because the defendant did not appear at the hearing. The court received a verified statement from the plaintiff about defendant's military status, see *Servicemembers Civil Relief Act Verified Statement* (MC 500). The court has complied with the Servicemembers Civil Relief Act.
- ☐ **by consent** because the parties agreed to the terms of the judgment.

Plaintiff Signature ▼

Date

Defendant Signature ▼

Date

3. The **plaintiff** is the: (select one)

- ☐ judgment debtor (must pay money) ☐ judgment creditor (is owed money)

The **defendant** is the: (select one)

- ☐ judgment debtor (must pay money) ☐ judgment creditor (is owed money)

C

Judgment (continued)**It is ordered:**

4. The judgment debtor must pay the judgment creditor the judgment amount plus interest.

	Amount	Description (optional)
Damages	\$	
Costs (fees)	\$	
Other	\$	
Judgment Amount	\$	

► This judgment will earn interest at the current statutory rate. For more information on statutory rates see michigan.gov/taxes/interest-rates-for-money-judgments.

5. This judgment must be paid: (select one)

- ☐ **in full immediately.** If the judgment debtor cannot immediately pay the full judgment, the judgment debtor must pay the full judgment within 30 days of the date of this judgment. If the judgment debtor does not pay the full judgment within 30 days, they must tell the court and the judgment creditor, in writing, where they work and the location of their accounts in all banks, savings and loan associations, or credit unions.
- ☐ **in installment payments** until the judgment (including any interest) is paid. No other proceedings to collect this judgment can occur if the judgment debtor complies with this order. If installment payments are not made as directed, the judgment debtor must tell the court and the judgment creditor, in writing, where they work and the location of their accounts in all banks, savings and loan associations, or credit unions.

Amount of each payment

Date installment payments start

Payment frequency: (select one)

- ☐ once a week (weekly) ☐ every two weeks (biweekly) ☐ once a month (monthly)
☐ other: _____

6. If the judgment debtor does not pay the judgment pursuant to its terms or any installment payment ordered, they may be ordered into court to answer questions about their assets. The court may allow the debtor's property to be seized and money from their paycheck to be garnished (taken) to pay the judgment.

7. Other:

Judge Signature and Date ▲

ⓘ This judgment is final.

Magistrate Signature and Date ▲

ⓘ This dismissal or judgment may be appealed to the district court judge within 7 days after the date it is signed. After 7 days, this dismissal or judgment is final.

D

Certificate of Service

I served a copy of this *Small Claims Dismissal or Judgment* on each party by delivery or by mailing to the address on their pleadings. If a judgment was entered, I also sent a copy of *Collecting a Small Claims Judgment* (Form DC 85info) to the plaintiff.

I declare under the penalties of perjury that this certificate of service has been examined by me and that its contents are true to the best of my information, knowledge, and belief.



Court Clerk Signature and Date ▲

E

Additional Information

Judgments paid in full. Once the judgment is paid in full, the judgment creditor should complete the *Certificate of Satisfied Judgment* (Form MC 17) and file it with the court. If the creditor does not file a *Certificate of Satisfied Judgment*, the judgment debtor may file a motion asking the court to enter an order of satisfaction using *Notice of Hearing and Motion* (Form MC 326).

Judgments not paid in full or installment payments not made. For more information about collecting a small claims judgment, read *Collecting a Small Claims Judgment* (Form DC 85info). Forms are available at courts.michigan.gov/SCAO-forms.